

security of third parties relying on the content of the original application (see G 1/93, OJ 1994, 541); otherwise, at a later stage the public could be faced with claims extending beyond what was disclosed in the application as filed and published (T 740/91 and T 1227/10). The public may not be confronted with an extent of protection, which could not have been established by a skilled person having studied the whole content of the technical disclosure of the originally filed patent application (T 157/90; see also T 187/91 and T 2327/18, which cites G 2/10, OJ 2012, 376, point 4.5.5 of the Reasons).

The **"gold standard"** (G 2/10, OJ 2012, 376) for assessing compliance with Art. 123(2) EPC is the following: any amendment to the parts of a European patent application or of a European patent relating to the disclosure (the description, claims and drawings) is subject to the mandatory prohibition on extension laid down in Art. 123(2) EPC and can therefore, irrespective of the context of the amendment made, only be made within the limits of what a skilled person would derive directly and unambiguously, using common general knowledge, and seen objectively and relative to the date of filing, from the whole of these documents as filed (G 3/89, OJ 1993, 117; G 11/91, OJ 1993, 125). After the amendment the skilled person may not be presented with new technical information (G 2/10; see however G 1/16 for undisclosed disclaimers). For details, see in this chapter II.E.1.3. "Standard for assessing compliance with Article 123(2) EPC" further below; for more details on G 1/16, OJ 2018, A70, see chapter II.E.1.7. "Disclaimer" below.

Art. 123(2) EPC applies to all amendments to the patent application or patent. These include corrections of the description, claims or drawings under R. 139, second sentence, EPC (for details, see in this chapter II.E.4. "Correction of errors in the description, claims and drawings – Rule 139 EPC").

The Enlarged Board has stressed the importance of applying a **uniform concept of disclosure** (with reference to Art. 54, 87 and 123 EPC; see G 2/10, OJ 2012, 376, point 4.6 of the Reasons, citing G 1/03, OJ 2004, 413; see also G 1/15, OJ 2017, A82, with reference to G 2/98, OJ 2001, 413). See also e.g. T 330/14.

In the case of divisional applications, the same principles are to be applied for determining whether subject-matter extends beyond the content of the earlier application as filed (G 1/05, OJ 2008, 271, point 5.1 of the Reasons). The decisions dealing with such cases are therefore also reported in this chapter.

The same principles also apply to the ground for opposition under Art. 100(c) EPC.

The ground for opposition under Art. 100(c) EPC and the corresponding requirement of Art. 123(2) EPC in regard to any amendment carried out on the patent in the course of the opposition and opposition appeal proceedings are of equal fundamental importance compared to other requirements, such as e.g. novelty, inventive step or sufficiency of disclosure, when it comes to deciding whether a patent can be maintained; also, extension of subject-matter in the terms of Art. 123(2) EPC is not a question of "form" of the patent, which might fall under the heading of a "formal requirement", but a substantive one (T 2171/14).

1.2. Content of the application as filed: Parts of the application which determine the disclosure of the invention

1.2.1 Description, claims and drawings

Regarding the concept of the content of the application as filed, G 3/89 (OJ 1993, 117) and G 11/91 (OJ 1993, 125) laid down that it related to the parts of the European patent application which determined the disclosure of the invention, namely the description, the claims and the drawings. Note however that since the revision of the EPC, when determining the application documents "as filed", account has to be taken of R 40 and 56(3) EPC.

Amendments can only be made within the limits of what a skilled person would derive from the **whole** of these documents as filed (G 2/10, OJ 2012, 376). In T 676/90 the board considered that the content of an application was defined not only by features mentioned or shown therein but also by their relationship to each other. Accordingly, it found that a figure could never be interpreted in isolation from the overall content of the application but only in that general context.

In T 1544/08 the board held that, if the **drawings** of the originally filed application were **in colour**, it was these figures which must be used as the basis for determining whether subsequently filed figures contained added subject-matter within the meaning of Art. 123(2) EPC.

1.2.2 Abstracts, titles, priority documents, parallel applications

In T 246/86 (OJ 1989, 199) the board decided that as the **abstract** was intended solely for documentation purposes and did not form part of the disclosure of the invention, it could not be used to interpret the content of the application for the purposes of Art. 123(2) EPC 1973 (confirmed in T 735/03, T 606/06, see also G 3/89, OJ 1993, 117, G 11/91, OJ 1993, 125 and T 735/03). The same applies to the **title** on the cover sheet (T 1437/07).

For the purpose of Art. 123(2) EPC, "the content of the application as filed" also does not include any **priority documents**, even if they are filed on the same day as the European patent application (see T 260/85, OJ 1989, 105; G 3/89, OJ 1993, 117; G 11/91, OJ 1993, 125; and e.g. T 1937/17); the same is true for parallel applications (see, e.g. J 16/13, T 1197/13, concerning a German utility model application claiming the same priority). Concerning priority documents, see however R 56(3) EPC and chapter IV.A.5.4 below.

1.2.3 Language issues

Before the EPC 2000, a European patent application could only be filed in one of the official languages of the EPO (Art. 14(1) EPC 1973) or, by persons benefiting from the "language privilege", in an "admissible non-EPO language" with a translation into one of the official languages to be filed (Art. 14(2) EPC 1973). In line with Art. 5 PLT,

Art. 14(2) EPC now provides that the application may be filed in one of the official languages or in "any other language". In the latter case a translation has to be provided (see chapter III.F.1. "Language of filing and date of filing of a European patent application").

In T. 382/94 (OJ 1998, 24) the board held that if the drawings were filed in full on the date of filing, they formed part of the application as filed, even if they contained text matter in an official language other than the language of the proceedings.

In T. 605/93 the board held that where the application documents of the European application as filed were a translation of the international application as it was filed, the content of the "application as filed" was that of the **international application as it was filed** (see also T. 1402/09, T. 923/13 and T. 1981/15). In all normal circumstances, it ought however to be assumed that the published European application was identical in content with the published international application (T. 605/93, see also T. 549/09). Only when there were reasonable grounds to doubt this presumption in a particular case was further investigation and, where necessary, the production of evidence required (T. 1010/07, T. 1981/15).

In T. 287/98 the original application in Dutch contained the word "schroot", which means scrap metal. The board decided that the replacement of the word "scrap" (as initial translation of "schroot") by "scrap metal" was allowable under Art. 123(2) EPC 1973 since Art. 70(2) EPC 1973 provided that in a case referred to in Art. 14(2) EPC 1973, i.e. in which the European patent application was filed in a language of a contracting state other than English, French or German, the **original text** had to be taken into account in order to determine whether the subject-matter of the application extended beyond the content of the application as filed. For further cases under Art. 14(2) EPC and Art. 123(2) and (3), see e.g. T. 516/12 and T. 1585/12.

In T. 1386/18 the board allowed an amendment of a term in the description, to bring it into line with the original PCT application filed in Chinese. According to the appellant, this amendment was based on the correct translation of the corresponding Chinese term. The board regarded the translation's inaccuracy as a plausible fact and therefore found there was no subject-matter extension.

1.2.4 Cross-references to other documents – incorporation by reference

In T. 6/84 (OJ 1985, 238) the board took the view that structural features of a means for performing a chemical process (here the catalyst "offretite"), which were not mentioned in the application documents themselves but in a document (here a Canadian patent specification) to which they referred, could be incorporated into a patent claim if they unequivocally formed part of the invention for which protection was sought (see also T. 590/94). However, it was not permissible to single out a particular one of their number (here a silica/alumina ratio) in the absence of evidence that this feature alone was a sufficient characterisation. It was instead necessary to recite fully the other essential components of the structure and the diffraction pattern figures which belonged together, as originally disclosed and defined in that document.

In T 689/90 (OJ 1993, 616) the board decided that features disclosed only in a cross-referenced document which was identified in the description as filed were prima facie not within "the content of the application as filed". Only under particular conditions would adding them to a claim not be an infringement of Art. 123(2) EPC 1973, namely if (a) the description of the invention as filed left the skilled reader in no doubt that protection was sought for those features; (b) they helped achieve the invention's technical aim and thus formed part of the solution to the technical problem underlying the invention claimed; (c) they implicitly clearly belonged to the description of the invention contained in the application as filed (Art. 78(1)(b) EPC 1973) and thus to the content of the application as filed (Art. 123(2) EPC 1973); and (d) they were precisely defined and identifiable within the total technical information contained in the reference document. In the case at issue these requirements were not fulfilled. See also T 196/92, T 558/03, T 1497/06, T 1415/07, T 1378/08, T 664/11, T 1451/12, T 2498/12, T 672/14; see also T 474/05 in which the reference in the application to a document was within a specific context, and the amendment went beyond this context and was thus not allowable; see also T 2477/12, applying T 689/90 in the context of Art. 76(1) EPC where the priority application, containing sequence listings, had been "incorporated by reference" in the parent application.

In T 1125/17 the board emphasised that requirement (a) of T 689/90 was very stringent. With reference to T 1415/07, it highlighted that it had to be unambiguously derivable to the skilled person which features of the application were to be taken from the reference document. A mere mention of a prior art document as an "example" was normally insufficient to identify which features or groups of features were of particular relevance for the citing application.

In T 737/90 the board held that a cross-referenced document could only be taken into account if the relevant addressees of the application containing the reference had ready access to the referenced document (the EPO before publication of the application and the public after it).

On incorporation by reference in the context of novelty, see chapter I.C.4.2 above.

1.3. Standard for assessing compliance with Article 123(2) EPC

1.3.1 Gold standard: directly and unambiguously derivable

Any amendment to the parts of a European patent application or of a European patent relating to the disclosure (the description, claims and drawings) is subject to the mandatory prohibition on extension laid down in Art. 123(2) EPC and can therefore, irrespective of the context of the amendment made, only be made within the limits of what a skilled person would derive directly and unambiguously, using common general knowledge, and seen objectively and relative to the date of filing, from the whole of these documents as filed (G 3/89, OJ 1993, 117; G 11/91, OJ 1993, 125; G 2/10, OJ 2012, 376, referring to this test as "gold standard"; confirmed for disclosed disclaimers in G 1/16, OJ 2018, A70; for undisclosed disclaimers, see however chapter II.E.1.7.2 c)). After the amendment the skilled person may not be presented with new technical information (G 2/10).

In T.1937/17 the board held that, other than for the purposes envisaged in G.1/93 (OJ 1994, 541), a "technical contribution" was of no relevance when deciding on the allowability of amendments under Art. 123(2) EPC. Instead, the gold standard set out in G.2/10 was the only criterion that had to be applied. Similarly, in T.768/20 the board found that G.1/93 concerned a limited exception (for disclaimers) to the general rule – referred to as the "gold standard" – governing the allowability of amendments. On the basis of a detailed analysis of the case law of the Enlarged Board of Appeal, the board rejected the argument made by the appellant (patent proprietor) that the gold standard was limited to amendments of the type making a technical contribution to the claimed invention.

As can be seen from the "gold standard", the assessment of the requirements of Art. 123(2) EPC is to be done from the standpoint of the **skilled person** (see chapter II.E.1.3.2 "Standpoint of the skilled person" below).

The subject-matter must be at least implicitly disclosed (T.860/00; see also G.2/10, OJ 2012, 376), see in this chapter II.E.1.3.3 "Implicit disclosure" below.

The boards have emphasised with regard to various tests developed for different cases of amendments that they are only meant to provide an indication of whether an amendment complies with Art. 123(2) EPC as interpreted according to the "gold standard". They may assist in determining the allowability of an amendment but do not take the place of the "gold standard" and should not lead to a different result. See e.g. T.648/10, T.2561/11, T.46/15, T.1420/15, T.1472/15, T.553/15, T.85/16, T.1189/16 and T.437/17 with regard to the "essentiality test", T.1471/10 and T.1791/12 with regard to "intermediate generalisation", T.1255/18 with regard to the "two-lists principle" and T.873/94, OJ 1997, 456, T.60/03 and T.150/07 with regard to the "novelty test"; note however that special criteria apply for undisclosed disclaimers; for more details on these tests, see chapter II.E.1.4.4 "The essentiality or three-point test", chapter II.E.1.9 "Intermediate generalisations", chapter II.E.1.3.7 "Novelty test" and chapter II.E.1.7 "Disclaimers".

In T.1121/17 the board recalled that the relevant question for the purposes of Art. 123(2) EPC was whether the amendments remained within the limits of what a skilled person would derive directly and unambiguously, using common general knowledge, from the whole of the application as filed ("gold standard" of G.2/10, OJ 2012, 376). An amendment having the effect of broadening the scope of protection of a claim as originally filed, for instance by generalising it so as to allow the presence of some materials in amounts which were originally excluded from the claim, did not infringe Art. 123(2) EPC if the amended subject-matter derived directly and unambiguously from the whole of the application as filed.

1.3.2 Standpoint of the skilled person

Any amendment can only be made within the limits of what a **skilled person** would derive directly and unambiguously, using common general knowledge, and seen objectively and relative to the date of filing, from the whole of the documents as filed (G.2/10, "gold standard", see above chapter II.E.1.3.1).